OCCUPIED ACQUISITION ESTOPPEL PROTOCOL

A 14-Point Non-Negotiable Tenant Verification Checklist for Real Estate Buyers

Never accept a seller's rent roll in place of a tenant's signed attestation. What the seller represents and what the tenant confirms is where 5-figure surprises hide.

PHASE 1: LEASE & TENANCY VERIFICATION / 10

- ☐ **E1: Lease Nature**
  Written vs verbal lease status, including start date and expiration.
- ☐ **E2: Occupancy Roster**
  Full legal names of all adult occupants, not just the lease signatory.
- ☐ **E3: Month-to-Month**
  Whether tenancy is currently month-to-month or term-bound.

PHASE 2: FINANCIAL & ESCROW AUDIT / 10

- ☐ **E4: True Rent Rate**
  Exact monthly rent due date and amount paid last month.
- ☐ **E5: Security Deposit**
  Exact deposit collected by seller (must be credited at closing).
- ☐ **E6: Prepaid Rent**
  Verification of any prepaid last month's rent or auxiliary fees.

PHASE 3: UTILITY & FIXTURE BOUNDARIES / 10

- ☐ **E7: Utility Splits**
  Written confirmation of tenant-paid vs landlord-paid utilities.
- ☐ **E8: Tenant Appliances**
  Inventory of tenant-owned refrigerators/stoves vs property fixtures.
- ☐ **E9: Pet Attestation**
  Count, breed, and pet rent/deposit verified against property rules.

PHASE 4: SIDE AGREEMENTS & REPAIRS / 10

- ☐ **E10: Side Agreements**
  Attestation of any verbal discounts, free rent promises, or storage rights.
- ☐ **E11: Repair Demands**
  Tenant's written statement of any existing defects or needed repairs.
- ☐ **E12: Closing Credit**
  All tenant deposits and prorated rents credited on HUD-1 statement.

TOTAL AUDIT SCORE
_____ / 40

DIAGNOSTIC BENCHMARK & ACTION THRESHOLDS:

[DISCREPANCIES FOUND] RENEGOTIATE OR PAUSE: Demand closing credits or require seller remediation before closing.

[SELLER REFUSES ACCESS] WALK OR ESCROW: Escrow 3 months rent until independent verification is completed.

[CLEAN ESTOPPEL] TITLE READY: Proceed to close. Handoff to Bolderock Operate onboarding day 1.

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